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Dr Allan Freeth
Chief Executive
Environmental Protection Authority
By email: Allan.Freeth@epa.govt.nz

Cc: Environmental Protection Authority
By email: contact@fasttrack.govt.nz

Dear Dr Freeth

Requirement to publish documents under s93 of the Fast-track Approvals Act 2024

- 1 I act for Environmental Defence Society Inc (**EDS**). As you know, EDS has been in contact with the EPA in relation to the duty to proactively publish information associated with Fast-track proposals on the EPA website, as this information is received by the EPA. The relevant context is set out in Shay Schlaepfer's email to you of 18 March 2025 and Richard Preece's reply of 25 March 2025.
- 2 As is evident from that exchange, there appears to be a difference of opinion as to whether the EPA is complying with its statutory obligations under ss 92 and 93 of the Fast-track Approvals Act 2024 (**FTAA**).
- 3 This letter sets out those statutory obligations and formally requests that the EPA publish various documents as required by the law, in a manner that ensures these documents are publicly available on the EPA website.

Statutory obligations

- 4 Sections 92 and 93 of the FTAA are straightforward. Section 93 requires that the EPA *must*, "as far as practicable" publish every written notice or other document that the FTAA requires to be

received or sent by the EPA, subject only to the ability to withhold information “for good reason” under official information legislation:

93 EPA must publish notices and other documents

- (1) This section applies to every written notice or other document that this Act requires to be—
 - (a) received by the EPA or a panel from any person; or
 - (b) sent by the EPA or a panel to any person.
- (2) The EPA must publish the written notice or other document on an internet site that is administered by or on behalf of the EPA and is publicly available as far as practicable and free of charge.
- (3) In complying with subsection (1), the EPA may withhold information if the EPA is satisfied that there would be good reason to withhold the information under the [Official Information Act 1982](#) if the information were requested under that Act.

5 In performing and exercising this function, duty or power, s 92 requires the EPA to, as far as is reasonably practicable, *avoid* delay:

92 EPA powers to make certain decisions

- (1) The EPA—
 - (a) may make administrative decisions that are incidental or ancillary to the conduct of a panel; but
 - (b) must not make administrative decisions that would be inconsistent with, or preclude compliance with, [clause 5](#) of Schedule 3.
- (2) In performing and exercising its functions, duties, and powers under this Act, the EPA must, as far as is reasonably practicable, minimise costs and avoid delay.

6 The ability to withhold information under the Official Information Act 1982 (**OIA**) is a constrained power. The EPA cannot, for example, adopt a blanket policy of withholding information, pending a completeness assessment, or because it is administratively convenient, because that would violate the principle of availability, as well as the requirement to act without delay.

7 Section 93 was included by Parliament to ensure availability of information to the public, as well as affected persons, relating to projects that may have material and permanent consequences to the environment. There is no “good reason” to delay publication of the content of all substantive applications pending a completeness assessment by the EPA. Transparency of information provides a much needed ‘checks and balances’ approach, especially given the importance of the EPA assessment of completeness, and the statutory consequences that follow.

8 Moreover, the discretion to apply the OIA must be applied on a document-by-document basis, rather than on an “application by application basis”, and bearing in mind the principle of availability, Parliament’s deliberate cross-reference to the OIA in s93, and the underlying purpose of the FTAA legislation (to facilitate delivery of infrastructure and development projects with significant regional and national importance).

Notices and documents required to be received or sent by the EPA

- 9 The FTAA requires that numerous notices and documents be received or sent by the EPA. EDS asserts that the EPA is currently only publishing some of these on the fasttrack.govt.nz website, and even then, doing so with unreasonable delay in some instances.
- 10 Indeed, it appears that for the purpose of publishing notices and documents, EDS asserts that the EPA has drawn an arbitrary line at s 46 completeness decisions. Once a substantive application is confirmed to be within scope and complete, the EPA is then publishing the application and associated completeness decisions.
- 11 Notices and documents received and sent by the EPA prior to that time are being withheld. That includes substantive applications which are being unreasonably withheld until after completeness decisions are made.
- 12 This delay in publication is both inappropriate and prejudicial. Once an application is determined to be complete, there are substantive and procedural consequences, many of which are mandatory steps under the FTAA (such as s 53: invitations to provide comment on substantive applications). Early provision of information will be critical to enable proper engagement in such processes.
- 13 Given the tight timeframes embedded in FTAA processes, and the limited opportunity for engagement by affected parties (including EDS), there is considerable public interest in transparency of information related to substantive applications.
- 14 In his email to Ms Schlaepfer, Mr Preece advised that the EPA publishes applications that it provides to the Panel Convener for assessment by a Panel, with appropriate redactions, and that if an application is assessed as incomplete, it is returned to the applicant and not published. He says that "[t]his is consistent with our practice under previous fast-track schemes we have administered." On that basis, Mr Preece says that the "EPA publishes information received under the Fast-track Approvals Act 2024 on its website in accordance with sections 92 and 93 of that Act."
- 15 With respect, the EPA's position is contrary to its express legal obligations under the FTAA as set out above. There is no legal justification for withholding notices or documents received or sent by the EPA prior to completeness decisions being made, including substantive applications when first lodged with the EPA. Practices adopted under previous fast-track legislation are irrelevant to the EPA's statutory obligations under the FTAA. As noted above, the

EPA cannot adopt a blanket approach (of non-publication) to its obligations under s 93 of the FTAA.

- 16 Further, it appears that some, but again not all, notices and documents received and sent by the EPA after completeness decisions are made are being published. For example, correspondence from the Panel is being published, but it appears that notices and documents in relation to s 47 of the FTAA are not.
- 17 Table 1 below sets out notices and documents received or sent by the EPA that EDS considers must, at a minimum, be published.

FTAA section	Notice or document	Sent/received by the EPA
S 28(2)	Notice of Minister's decision on referral application	Received
S 28(4)	Documents from the Minister relating to referral applications	Received
S 42	Substantive applications and associated documents	Received
S 46(1)	Documents from relevant administering agencies and relevant consent authorities for the purpose of assessing whether a substantive application is complete and within scope	Received
S 47(1)	Documents from relevant administering agencies and relevant consent authorities for the purpose of recommending whether a substantive application has any competing applications and existing resource consents	Received
S 47(1)	Recommendations to the Minister in relation to competing applications and existing resource consents	Sent
Ss 47(6)-(9)	Notice from the Minister in relation to competing applications and existing resource consents	Received

Table 1: Notices and documents that must be published

- 18 Other specific notices or documents are required to be sent or received by the EPA, including in relation to aquaculture,¹ Treaty settlements² and the EEZ Act.³ While not a core focus for EDS, they are illustrative examples.
- 19 Accordingly, EDS requests that the EPA:
- (a) confirm that the EPA has systems and processes in place to comply with its obligation under s 93 of the FTAA (and the wider Act) in respect of substantive applications, as soon as lodged with the EPA; and

¹ FTAA, s 48

² FTAA, s 49

³ FTAA, ss 11(1)(e) and 17(1)(c)

- (b) immediately publish the notices and documents included in Table 1 on the Fast-track website in accordance with its statutory obligations under ss 92 and 93 of the FTAA. Failure to do so is a breach of the FTAA; and
 - (c) to the extent that the EPA relies on the OIA in relation to specific documents or parts of documents associated with individual substantive applications, then the EPA should publish its determination in respect of individual documents. For example, and as is routine for official information, the EPA should publish documents, even where documents are redacted, in whole or part.
- 20 Whilst EDS seeks to engage constructively with the EPA on implementation of the FTAA, it will explore judicial remedies to ensure that the FTAA is correctly applied, particularly when it involves matters of fairness, natural justice, and transparency.
- 21 EDS considers that this is an urgent issue, particularly as it understands that the EPA has received several substantive applications over the last 4 weeks. Accordingly, I look forward to hearing from the EPA, or your legal advisors imminently.

Yours faithfully



**Rob Enright
Barrister**